

Tentative rulings for May 20, 2026 in Nightingale v. Durrett 26CU0020

Plaintiff Steven Nightingale's Motion to Compel Arbitration and Stay the Trial Court's Proceeding

Plaintiff Steven Nightingale's motion to compel arbitration and stay the trial court's proceeding is granted. This action is stayed pending the completion of arbitration proceedings between Nightingale and defendant Charles Durrett.

All claims alleged by Nightingale are within the scope of the parties' agreement set forth in paragraph 31 of the Purchase Agreement.

Durrett does not dispute the existence of the agreement to arbitrate or that the claims alleged by Nightingale are covered by scope of their agreement to arbitrate. Durrett's sole argument opposing this motion is that "third party exception" in Code of Civil Procedure 1281.2(c), a section of the California Arbitration Act, applies to this case and, per that section this motion should be denied to avoid the possibility of conflicting rulings. Durrett's argument lacks merit.

Paragraph 31 of the Purchase Agreement states that "Enforcement of, and any motion to compel arbitration pursuant to, this agreement to arbitrate shall be governed by the procedural rules of the Federal Arbitration Act, and not the California Arbitration Act." Published California case law holds that the same or similar language requires application of the procedural rules of the FAA and renders section 1281.2(c) inapplicable. *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal. App. 5th 337, 342-350 is instructive and dispositive of this motion. *Victrola* summarized its holding as when "the parties incorporated the procedural provisions of the FAA" into their agreement, "the court could not look to Section 1281.2(c) to deny" a motion to compel. (*Id.* at 342-343).

This tentative ruling is deemed to be contested without need to inform the court or other counsel and the hearing on May 20, 2026 at 1:30pm will proceed as noticed unless counsel for Durrett informs the court and other counsel that Durrett submits to the tentative ruling.

Defendant Charles Durrett's Demurrer to Plaintiff's Complaint and Motion to Strike Punitive Damages

Defendant Charles Durrett's demurrer to plaintiff's Steven Nightingale's complaint and motion to strike punitive damages is off calendar in light of the ruling granting Nightingale's motion to compel arbitration.